

OPEN LETTER TO THE MAYOR AND BOARD OF TRUSTEES

Request for the text, factual basis, and public-welfare justification for the proposed local law

TO	Mayor Marc Citrin and the Board of Trustees
FROM	David and Robin McFadden
DATE	August 6, 2026
PROPERTY	Historic Boathouse, 61 Turtle Point Road (separate tax lot)
RE	Proposed restrictions on nonresidential structures, property uses, photography and events

We submit this letter so the Board and the public can evaluate the announced proposal before final text is noticed, heard, or adopted. We recognize the Board's authority and share its interest in protecting privacy, safety, and tranquility. We ask that the Board publish the actual proposal, distinguish residential occupancy from other temporary uses, address Chapter 51 directly, identify the problem being solved and consider neutral, proportionate alternatives before restricting peaceful, owner-supervised activity.

The Village already prohibits short-term residential occupancy. A six-hour, owner-supervised photography session with no sleeping or transfer of residential possession is not an Airbnb rental. That distinction does not resolve the separate questions presented by Chapter 51; it demonstrates why photography should be addressed transparently rather than treated as residential occupancy. Extending residential-rental terminology to property would be a substantive policy choice, not a clerical correction.

1. Publish the complete law before asking the public to defend or oppose it

On June 18, the Board's published agenda identified our June 14 memorandum proposing changes to Chapter 51 and referred it to the Village Attorney for initial review. The Village posted the complete memorandum with the agenda. Residents could therefore read the proposal rather than rely upon a characterization of it.

The July 16 agenda later described discussion of "rentals of non-residential properties such as boathouses, barns, garages, pools, tennis courts, etc. to the public for parties and other events." The Mayor's July message announced that the Board would consider a proposed local law at its August 20 meeting and that a public hearing would precede any vote. The materials presently available do not disclose the operative language, the Code chapter to be amended, the relationship to Chapter 51 or Chapter 100,

definitions, findings, exceptions, grandfathering, penalties, enforcement standards, or appeal rights.

The terms used in the public descriptions are not interchangeable. “Nonresidential property” is broader than “accessory structure.” A “party or other event” is not necessarily a “rental.” Limited permission to photograph is not a lease or transfer of possession. “The public” could mean an open event, an invited vendor, a production crew or any nonowner. These differences determine whether the proposal reaches a quiet design photograph, a real-estate video, a charity event, a Club regatta, an influencer’s sponsored post, or a temporary residential occupant.

If no operative draft exists, residents cannot yet provide informed comments on legislation. If it exists or is scheduled for discussion, it should be posted promptly in the BOT Agendas and Official Notices sections, linked to the homepage meeting calendar, made available at Village Hall, and accompanied by a redline against every affected Code provision. If the text is released too late for responsible review or material changes, the Board should keep the hearing open or adjourn it.

2. We agree on Airbnb; that agreement cannot substitute for debate over a different activity

We agree that short-term residential rentals are inappropriate in Tuxedo Park. With public support, David participated in passage of Local Law 1-2018, the Village’s existing Airbnb restriction. Section 100-6(G) provides that a residence building may be used only for permanent residence purposes and prohibits advertising inconsistent occupancy. Section 100-2 defines a residence building as a building occupied as a home, residence or sleeping place and defines permanent residence purposes by reference to occupancy for at least 30 consecutive days.

The Code separately states that a boathouse may not be used for residence purposes. No one slept in, lived in, kept house in, or occupied our boathouse as a residence. No tenant or transient occupant received possession. The session did not resemble the social, safety or enforcement conditions that motivated the Airbnb law.

Compensation does not transform every temporary use into residential occupancy. A photographer may be paid, a magazine may sell advertising, a broker may earn a commission, a designer may promote professional work, and a homeowner may receive a location fee. Those facts may raise a separate Chapter 51 or land-use question, but they do not establish short-term residential occupancy under Chapter 100. If the Board wants to regulate photography, filming, or events, it should define those activities directly and address measurable effects rather than rely on the existing Airbnb framework as a substitute description. Exhibit B provides a statutory comparison.

The Village already recognizes different legal classifications for compensated property uses. The Tuxedo Club is in the same underlying A4 district and provides paid guest accommodation under some form of historical authority or approval. The scope and legal basis of that authority should be confirmed from Village records before it is used as a comparator. The privately owned property known as Apartments should not be treated as a short-duration comparator unless its rental terms and authority establish relevance.

We do not cite these uses to question their legality or to claim that they are legally identical to a photography session. They illustrate why the word “rental” cannot replace careful classification. Until the records are produced, the Club and Apartments should be treated as questions for consistent administration, not proof of unequal treatment.

The Tuxedo Club provides paid guest accommodation under historical authority or approvals that should be confirmed from Village records. We are not challenging that activity. We ask only that the Board apply the same care in distinguishing actual lodging from a six-hour, owner-supervised photography session with no sleeping, residential occupancy or surrender of possession.

3. The actual session was limited, supervised and peaceful

After approximately seven years restoring our historic boathouse, we advertised its availability, viewing by appointment only, as a location for occasionally professionally supervised photography sessions - again, by appointment only. We hosted one still-fashion session, on a weekday, approximately 10:00 a.m. to 4:00 p.m. David remained present throughout. We retained possession and control of the property and granted limited access for a defined creative activity.

There was no public attendance, admission charge, sleeping, housekeeping, tenancy, residential possession, overnight use, road closure, public-road staging, or amplified sound. No police call, code violation, summons, safety incident, noise violation, traffic incident, or contemporaneous quality-of-life complaint has yet been identified or produced. We recognize that residents may have expressed informal concerns, and we ask the Board to identify those concerns and explain why existing laws or proportionate permit conditions cannot address them.

Owner presence and retained control are significant to the activity's character and impacts, although they do not by themselves determine compliance with Chapter 51. Before choosing a categorical prohibition, the Board should identify the concern it

seeks to address, the scale of the anticipated harm and why existing laws or objective conditions are insufficient.

4. Chapter 51 already regulates photography—and its ambiguities should be resolved openly

Chapter 51 expressly covers filming, video production, photographic sessions, aerial photography, recording, and similar activities. Section 51-1 requires prior written Board permission and provides an eight-hour limit, a “business or commercial gain” restriction and protection against intrusion upon privacy, safety, or tranquility. Section 51-2 exempts only normal, occasional family photography entirely on the family’s premises and for no commercial purpose. The commercial-gain language was added in 2011.

We recognize the serious textual issue the Village may raise: Chapter 51 expressly covers photographic sessions, requires prior written Board permission, and states that covered activity may not be undertaken for business or commercial gain. The eight-hour limit is a separate condition and should not be treated as an affirmative commercial safe harbor. At the same time, the permission structure, the focus on sessions and the history of administration warrant a transparent, prospective clarification. We therefore ask the Board to address Chapter 51 openly and create objective standards for low-impact activity rather than imply that the Airbnb provisions decide the photography question.

The uncertainty itself is a reason for transparent legislative history and objective standards. The Board should publish Local Law 1-2011, its minutes, notices, memoranda, and stated purpose; explain how Chapter 51 has been interpreted and enforced since 2011; and reconcile any new law with both Chapter 51 and Chapter 100 so residents are not exposed to overlapping, undefined and selectively applied restrictions.

For clarity, our position is prospective: the existing text presents a serious compliance question, while the announced amendment presents a separate drafting and proportionality question. We seek a modern rule that gives residents fair notice and the Village enforceable, uniform standards.

5. “Commercial gain” requires neutral, objective administration

A real-estate listing photograph is not economically neutral because the homeowner is selling a house rather than making a location available. Its purpose is to obtain a commercial transaction, often at the highest achievable price; the photographer and broker are commonly paid. A listing video, virtual tour or drone sequence is moving-image production used directly to market property.

Architectural and design editorials are also not rendered economically irrelevant because they appear in a magazine or book. Publishers sell issues, subscriptions, and advertising. Photographers, stylists, architects, interior designers, decorators, and landscape professionals may be compensated or promoted. A featured owner may receive prestige and market exposure. Authors and publishers sell books. Influencers receive sponsorships, affiliate revenue, or free products. Executives may use a home office, historic structure, garden, or Tuxedo Lake view in corporate branding.

This does not mean that every editorial feature increases a property's value or that every indirect benefit legally constitutes commercial gain. It means that a broad interpretation based solely on economic benefit could reach familiar real estate, design, professional and resident-created imagery. The final text should avoid requiring officials to make subjective distinctions based on favored subjects, speakers, or institutions when objective impact standards are available.

A real-estate shoot and a fashion or editorial shoot of comparable scale may impose comparable cars, hours, equipment, noise, and neighborhood effects. The Board may distinguish activities that differ in frequency, scale, or relationship to residential use, but those distinctions should be written as neutral criteria. Regulation should turn principally on physical impacts rather than the destination or subject of the resulting image.

6. The announced language may have consequences far beyond our boathouse

Depending on the draft, an undefined prohibition on rental, commercial gain, public access, parties, events, accessory structures, or property could reach:

- real-estate listing photography, video, virtual tours, and drone imagery;
- architectural, interior design, decorative-arts, landscape and garden photography for magazines, books, portfolios, and professional websites;
- authors, publishers and residents hosting book signings, interviews, or promotional recordings;
- resident influencers and professional creators producing sponsored or monetized social-media content;
- a for-profit executive or professional using a home office, building, garden, or lake view in corporate branding;
- owner-hosted charitable fundraisers, exhibitions, performances, receptions, and other occasional gatherings;
- professional photographers or videographers documenting weddings, anniversaries, or family events;
- architects, engineers, contractors, appraisers, and insurers photographing property as part of compensated professional work;

- the Tuxedo Club and other institutions documenting or promoting events, buildings, sports, landscapes, and traditions; and
- quiet individual image-making that officials could deem commercially motivated because of downstream publication or indirect benefit.

These are not rhetorical extremes. Modern image-making collapses the old distinction between a production company and an individual resident: a phone, professional camera or drone can produce advertising, editorial, corporate, and sponsored content. A vague law could require officials to inspect the message, identify the intended audience, and investigate who receives money or promotion. That creates uncertainty, privacy concerns, and content- or speaker-based distinctions without improving neighborhood protection.

7. Tuxedo Park has a long history of photography, filming, publication, and professional imagery

Tuxedo Park's architecture, landscapes, gardens, lakes, institutions, and private homes have long appeared in books, magazines, newspapers, real-estate marketing, design portfolios, television, and video. Exhibit C documents verified examples and separately label those awaiting Village-record confirmation.

Among the important comparators are the September 8, 2011, Town & Country/Hearst multi-home editorial project; professional architectural and landscape portfolios; nationally distributed real-estate coverage; real-estate video at a private Village property; photography of the Tuxedo Club boathouse; Club architectural and golf-course publications; and reported location activity involving RHONY and "Billions." The FOIL requests seek the applications, permissions, complaints, and enforcement history needed to authenticate how Chapter 51 was administered.

Past nonenforcement does not automatically legalize an activity, and institutional practice does not erase Code language. It is nevertheless relevant to statutory interpretation, notice, consistent enforcement, decisionmaker understanding, comparative harm, rationality and whether a new law responds to a genuine village-wide problem or a newly noticed use by one owner.

8. Boathouses form a small, identifiable class

Our boathouse is not an accessory structure behind the principal residence. It sits on its own tax lot, has no principal residence on the parcel, and cannot lawfully be used as a residence. Only a small number of Tuxedo Park boathouse properties share the separate-lot characteristic. Naming boathouses in the contemplated law therefore affects a narrow and readily identifiable group and warrants particular care, a complete factual record, and uniform standards.

The Tuxedo Club owns and uses a boathouse. The Club also hosts prominent events where professional and public photography or video are integral, including its annual car show and the Tuxedo 1886 Regatta. The car show brings public attendees and extensive phone photography around Tuxedo Lake and nearby private homes. Regatta coverage follows racing on the lake and includes the Club boathouse.

We are not asking the Village to restrict the Club or ordinary attendee photography. These traditions benefit the community. They are currently offered as policy illustrations showing why definitions must distinguish incidental image-making from organized production; they are not offered as near-identical legal comparators without further records concerning permissions, scale, and official knowledge.

9. Comparable historic communities protect character through permits and objective conditions

Exhibit A documents on how historic, architecturally significant, and high-value New York communities address filming and photography. Cold Spring, Sleepy Hollow, Irvington, East Hampton, Southampton, Sag Harbor, Bronxville, Rhinebeck, and other municipalities use permits, hours, crew and vehicle limits, insurance, neighbor notice, traffic controls, and recovery of actual municipal costs. Some rules are limited to public property; some leave small private-property shoots outside the trigger; others expressly permit private-property production.

The point is not that Tuxedo Park must copy another municipality. It is that peer communities have demonstrated practical alternatives to a categorical ban. Even the rare national counterexample identified—Palm Beach, Florida—rests on municipality-wide legislative findings about traffic, parking, and barrier-island access. Rarity alone is not a constitutional rule, but it underscores the need for Tuxedo Park to identify local conditions and explain why ordinary impact controls are insufficient.

10. A Neutral Process and Complete Record Will Benefit the Village

The announced proposal followed public attention to our boathouse's availability for photography and specifically identifies boathouses among several types of structures. That chronology does not establish improper motive. It does, however, make a clear factual record and applicable standards are particularly important.

We respectfully ask the Board to explain the proposal's origin, the concerns it is intended to address and the factual basis supporting it. The Board should also consider comparable uses, explain any distinctions among them, and adopt prospective standards that apply uniformly and relate directly to legitimate public-welfare concerns.

Disclosure of Chapter 51 applications, interpretations and enforcement records will help the Board and residents understand how the existing law has been administered. That information can support a fair, informed discussion and help produce a clear rule that protects both neighborhood interests and reasonable private-property use.

11. The final text should avoid unnecessary content- or speaker-based distinctions

Photography, filming, and dissemination of information can involve expressive activity, but a neutral land-use rule directed to people, vehicles, hours, noise, lighting, parking, or road use regulates conduct and is easier to justify. Any constitutional analysis must await the actual text. The present drafting recommendation is practical: avoid exemptions or prohibitions that require officials to classify images by message, subject, speaker, or publication when identical physical impacts can be regulated objectively.

Economic motivation alone does not strip expression of constitutional protection. Courts have also cautioned against distinguishing commercial from noncommercial material when the distinction bears no relationship to the asserted physical harm. If two productions create the same traffic and noise, allowing one because it markets a house while prohibiting another because it markets clothing does not address the stated impact. The final draft should therefore be reviewed for content, speaker, and viewpoint distinctions before it is introduced.

12. Property rights are not absolute—but restrictions still require a legitimate, rational fit

We do not claim that ownership creates an unlimited right to conduct any activity. New York municipalities possess broad zoning and police powers. But those powers must still be exercised for legitimate public-welfare purposes and applied rationally. The Village should not prohibit a peaceful, contained use merely because it can imagine some larger production that might create problems.

Depending on the final text, the announced expansion could have unintended consequences for ordinary private-property use. The Board may regulate prospectively even without a prior violation or accident. The absence of any police, code, traffic, noise, or safety record presently produced for this low-impact session nevertheless supports proportional regulation rather than a categorical prohibition.

A categorical takings claim would face a high bar because the property retains substantial use and value; lost location income alone is not enough. That is not a reason to ignore ownership interests. The practical question for the Board is whether the burden is necessary, proportionate and distributed—or whether a narrow permit or safe harbor can protect neighbors without unnecessarily impairing historic-property stewardship.

13. Historic preservation, taxes, and marketability are part of the public-welfare balance

Tuxedo Park is listed on the National Register of Historic Places. Its distinctive value depends heavily on private owners undertaking costly restoration and maintenance of historic homes, gardens, landscapes, and structures. Owners should not be encouraged to preserve rare buildings and then face unclear new restrictions on peaceful uses that can help support preservation.

The 2026 assessment roll reflects substantial assessed value in the restored McFadden parcel. That fact does not establish discriminatory assessment, damage, or an entitlement to commercial activity. It is offered only as supplemental context concerning preservation investment and the cumulative costs borne by historic-property owners.

Residents also face property taxes, maintenance obligations, architectural controls, and other costs. Each restriction may seem small in isolation, but prospective buyers evaluate the cumulative burden and the flexibility associated with ownership. Before narrowing property use, the Board should consider marketability, historic preservation and whether uncertainty will discourage future investment.

14. Existing tools and a narrow alternative should be evaluated first

The Village already has Code provisions addressing photographic sessions, privacy, safety, tranquility, public gatherings, roads, parking, zoning, lighting, noise, fire safety, temporary structures, and drones. The Board should identify the specific gap that remains rather than add a broad prohibition whose coverage is uncertain.

If additional regulations are genuinely needed, a neutral safe harbor could allow occasional owner-supervised still or video sessions meeting objective conditions, for example:

- no more than eight hours in a day and only during specified daytime hours;
- a reasonable annual frequency limit, with a permit available above the threshold;
- caps on personnel and production vehicles, with all parking onsite;
- no road closure, public-road staging, public attendance, or admission charge;
- no amplified sound, large generators, special effects, exterior high-intensity lighting, or drones without separate approval;
- owner or responsible resident present and possession retained;
- insurance and indemnification proportionate to the activity;
- advance notice or administrative review only when objective thresholds are exceeded;
- reimbursement of actual police, traffic or Village costs caused by the production; and
- stop-work authority for a documented intrusion on privacy, safety, or tranquility.

These standards regulate what neighbors experience. They also give the Village enforceable rules, predictable administration, and a defensible record without requiring officials to decide whether a photograph is commercially respectable.

15. Questions the Board should answer on public record

1. What is the complete draft, which Code sections would it amend, and what does a redline show?
2. How will it define rental, lease, license, possession, public, party, event, commercial gain, accessory structure, nonresidential property, photography, and filming?
3. What complaints, police calls, inspections, violations, traffic incidents, or other documented harms support the proposal?
4. Why are Chapters 25, 51 and 100 and existing noise, parking, safety, temporary-structure, and drone rules inadequate?
5. What is the legislative history and intended scope of the 2011 commercial-gain amendment to Chapter 51?
6. How has Chapter 51 been interpreted and enforced since 2011, including after officials learned of unpermitted activity?
7. How will the law apply uniformly to private homeowners, standalone boathouses, the Tuxedo Club, Village property, real-estate professionals, designers, creators, home offices, gardens, and institutional events?
8. If real estate, book, news, nonprofit, Club or Village-sponsored imagery is exempt, what difference in physical impact justifies that distinction?
9. What narrower alternatives were analyzed and why were objective permit standards rejected?
10. Will the law be prospective, and what transition or grandfathering will protect existing commitments or established lawful uses?
11. What findings, SEQRA review, Orange County referral, notice, final form, and other procedural requirements apply?
12. Given the unpublished text and incomplete record, what need requires final action on August 20 rather than continued deliberation?

16. FOIL requests and the need to preserve the record

We have submitted FOIL requests for Chapter 51 applications, permissions, denials, complaints, and enforcement records since 2011 and for relevant police complaints and incident records. The requests also seek comparable records involving real estate and drone photography, the Club boathouse, identified productions and other commercial or editorial image-making. Because Village records may not be organized by subject, we asked that the search begin with the most recent records and move backward.

Those requests are not an accusation that every unpermitted activity was legal. They seek the evidence necessary to understand actual interpretation, official knowledge, comparative treatment and whether any quality-of-life problem exists. The Board and counsel should preserve drafts, revisions, emails, texts, complaints, agendas, minutes, recordings, and enforcement records concerning the proposed law and its origin.

17. Requested action

We respectfully ask the Board to:

- publish the complete proposed local law, all affected Code provisions and a clear redline immediately;

The disclosed record should identify how the proposal classifies residential occupancy, historically authorized institutional uses, ordinary tenancies, temporary licenses, events, and professional photography. Until their legal terms are verified, Club lodging and the Apartments should not be treated as established comparators. A change from “residential property” to “property” could affect far more than Airbnb-style occupancy and should not be adopted without that analysis.

- post the draft and hearing materials in the BOT Agendas and Official Notices sections, link them from the homepage meeting calendar, provide paper copies at Village Hall, and use customary physical posting locations, including the gate bulletin boards;
- publish the factual and public-welfare basis for the proposal, including documented complaints or incidents relied upon, subject to lawful redactions;
- identify the formal action scheduling the hearing and provide residents with reasonable time to review the actual draft;
- keep the August 20 hearing open—or adjourn it—if the draft or supporting record is posted late or materially changes;
- take no vote until the Board has addressed the questions in this letter and completed all required procedural review;
- consider a neutral, village-wide impact-based safe harbor or permit system rather than a categorical, property-specific, speaker-specific, or content-based prohibition;
- apply any rule prospectively and uniformly, with reasonable transition protection; and
- avoid unnecessary haste while the operative text and factual record remain incomplete; the forthcoming Board transition is an additional prudential consideration, not a limitation on the present Board’s authority.

18. Conclusion

We recognize that this letter asks the Board to examine a substantial record. Our central requests are straightforward: publish the text; identify the existing-law gap; address Chapter 51 directly; distinguish residential occupancy from other temporary

uses; and consider a low-impact safe harbor and objective permit process before adopting a categorical prohibition.

We are not asking for immunity from reasonable rules or claiming an unrestricted right to compensated activity. We are asking for clear, prospective, and uniform standards that distinguish residential occupancy from owner-supervised creative activity and regulate measurable impacts rather than labels. Tuxedo Park can protect privacy, tranquility and historic character while permitting carefully defined, gentle impact uses.

Supporting exhibits

- Exhibit A — Historic New York Communities and Filming Regulation
- Exhibit B — Existing Airbnb Prohibition and the Photography-Session Distinction
- Exhibit C — Tuxedo Park's History of Photography, Filming and Publication
- Exhibit D — Taxes, Regulatory Burden, and Property Marketability

Respectfully submitted,

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